

Tentative Rulings
August 28, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

31. *Keating II v. Loma Linda University Medical Cntr., et al*, Case No. CIVSB2507211
Defendant's Demurrer to First Amended Complaint
8/28/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **OVERRULE** the demurrer as to dependent adult abuse by neglect (Cause 1). A responsive pleading will be filed within thirty (30) days.

Case Summary

This is, in essence, a medical negligence case. Plaintiff alleges he is a "dependent adult" within the meaning of the Welfare and Institutions Code section 15610.23. He further alleges a host of medical maladies. He was admitted to Loma Linda University Medical Center (Loma Linda) on June 7, 2024, after abdominal pain and nausea. He remained hospitalized until June 25, 2024, but from June 12th through June 24th, Loma Linda purported did not provide him with turning and repositioning care. Plaintiff alleges that, instead, Loma Linda falsely documented that he "refused" turning and repositioning services. He further alleges that Loma Linda withheld timely responses from call button requests and that he developed significant further medical concerns as a result. As a result, he filed suit on March 13, 2025. On December 21, 2025, he filed the operative First Amended Complaint (FAC), alleging (1) dependent adult abuse by neglect and (2) negligence.

Statement of the Law

A demurrer challenges defects that appear on the face of the pleading, which includes incorporated exhibits, or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.) A demurrer predicated on insufficient facts to constitute a cause of action, pursuant to Code of Civil Procedure, section 430.10(e), should be granted only when the facts alleged on the face of the complaint fails to state any valid claim entitled to the plaintiff. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572; *New Livable California v. Assoc. of Bay Area Governments* (2020) 59 Cal.App.5th 709, 714.)

Analysis

Here, Defendant Loma Linda demurs to the first cause of action for "Dependent Adult Abuse by Neglect" as pleaded by Plaintiff in his First Amended Complaint (FAC). In sum, Loma Linda argues that the facts alleged in support of the cause are not sufficiently egregious to constitute neglect under the Elder Abuse and Dependent Adult Civil Protection Act (EADACPA or the Elder Abuse Act). Loma Linda argues that the neglect which is actionable under the EADACPA must be so egregious in nature that it constitutes true abuse in the plain meaning of that term.

The EADACPA defines "neglect" as the negligent failure of any person having the care or custody of an elder or dependent adult to exercise that degree of care that a reasonable person in a like position would exercise. (Welf. & Inst. Code, § 15610.57(a)(1)-(2).) Welfare & Institutions Code § 15610.57, subdivision (b) states: "Neglect includes, but is not limited to, all of the following: [¶] (1) Failure to assist in personal hygiene, or in the provision of food, clothing, or shelter. [¶] (2) Failure to provide medical care for physical and mental health needs . . . [¶] (3) Failure to protect from health and safety hazards.

[¶] (4) Failure to prevent malnutrition or dehydration. [¶] (5) Substantial inability or failure of an elder or dependent adult to manage their own finances. [¶] (6) Failure of an elder or dependent adult to satisfy any of the needs specified in paragraphs (1) to (5), inclusive, for themselves as a result of poor cognitive functioning, mental limitation, substance abuse, or chronic poor health.”

In *Covenant Care* the Supreme Court held that elder dependent abuse “covers an area of misconduct distinct from ‘professional negligence’” and that “the statutory definition of ‘neglect’ speaks not of the undertaking of medical services, but of the failure to provide medical care.” (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 783.) *Covenant Care* broadly instructs, “no such overlap occurs in the Elder Abuse Act context, where the Legislature expressly excluded ordinary negligence claims from treatment under the Act.” (See *id.* at 788-789.) The *Covenant Care* court made clear that the Elder Abuse Act has no application to acts other than those of egregious abuse.

Under the Elder Abuse Act, “a plaintiff who proves ‘by clear and convincing evidence’ that a defendant is liable for physical abuse, neglect, or financial abuse (as these terms are defined in the Act), and that defendant has been guilty of ‘recklessness, oppression, fraud, or malice’ in the commission of such abuse, may recover attorney fees and costs.” (*Covenant Care, Inc., supra*, 32 Cal.4th at p. 779 [emphasis].) “Recklessness, unlike negligence, involves more than ‘inadvertence, incompetence, unskillfulness, or a failure to take precautions’ but rather rises to the level of a ‘conscious choice of a course of action . . . with knowledge of the serious danger to others involved in it.’” (*Delaney v. Baker* (1999) 20 Cal.4th 23, 31-32.) Oppression, fraud and malice ‘involve “intentional,” “willful,” or “conscious” wrongdoing of a “despicable” or “injurious” nature.’ [Citation.]” (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 405.)

The determination of whether an entity is a care custodian under the EADACPA is considered on a case-by-case basis as to whether the facts show a person has assumed significant responsibility for attending to one or more of the basic needs of the elder or dependent adult that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance. (*Kruthanooch v. Glendale Adventist Medical Center* (2022) 83 Cal.App.5th 1109, 1124.) The key to this analysis is whether the plaintiff relied on the defendants in any way distinct from an able-bodied and fully competent adult. (*Ibid.* at p. 1125.) Here, the FAC alleges Plaintiff has a host of significant medical maladies. (FAC, ¶12.) As a result, Plaintiff could not turn or reposition himself in bed, cannot transfer himself, and is wholly dependent on caregivers for all activities of daily living. (FAC, ¶12.) The FAC further alleges that because of Plaintiff’s medical conditions, he was at risk of developing ulcers. (FAC, ¶142.) Loma Linda is alleged to have been aware of Plaintiff’s conditions. (FAC, ¶115.) Yet, no plan was made to not provide Plaintiff with turning and repositioning care. (FAC, ¶141.) Plaintiff has therefore alleged sufficiently.

32. *Wallace v. Superior Court of Calif., Co. of Orange*, Case No. 30-2026-01546133-CU-MC-NJC
Plaintiff’s Motion to Strike Portions of Defendant’s Answer
8/28/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would construe the motion to strike the first through eighth affirmative defenses in Defendant’s answer as a motion for judgment on the pleadings. In that light, the Court would **DENY** the

motion because the allegations are proper objections raised by way of the answer and the allegations raise new matters.

Case Summary

In this matter Plaintiff seeks to obtain access to documents and records associated with her ADA accommodation file from within the Defendant Court. On February 9, 2026, Plaintiff filed a verified complaint against the Superior Court of Orange County, alleging causes of action for (1) injunctive relief and (2) declaratory relief. On April 29, 2026, Defendant Court filed its answer including eight “affirmative defenses.”

Analysis

Now before the Court, Plaintiff moves to strike each of Defendant Court’s affirmative defenses on the grounds that they are each irrelevant, conclusory, and not drawn in conformity with the law.

As a preliminary matter, “a motion to strike is generally used to reach defects in a pleading which are not subject to demurrer.” (*Pierson v. Sharp Mem’l Hosp.* (1989) 216 Cal.App.3d 340, 342.) “A motion to strike does not lie to attack a [pleading] for insufficiency of allegations to justify relief; that is a ground for general demurrer.” (*Pierson, supra*, 216 Cal.App.3d at p. 342 [emphasis added].) Here, Plaintiff’s motion appears procedurally improper since it is brought on grounds for which a general demurrer is required. However, a court may treat an improper motion to strike for failure to state a cause of action as a motion for judgment on the pleadings, which “is made on the same grounds and decided on the same basis as a general demurrer.” (*Ibid.*)

A motion for judgment on the pleadings has the same function as a general demurrer, meaning it can be predicated on an answer’s failure to state facts sufficient to constitute a defense [Code Civ. Proc. § 430.20, subd. (a)] and should only be sustained where the facts alleged on the face of the answer fail to state any valid defense entitling the defendant to relief against the plaintiff. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.) The defendant may be mistaken as to the nature of the case or the legal theory on which he or she can prevail, but, if the essential facts of some valid defense are alleged, the answer is sufficient against a general demurrer. (*Ibid.*)

Plaintiff argues that Defendant Court’s affirmative defenses are not defenses but, rather, merely restatements of the standards for a demurrer. Plaintiff asserts that each defense lacks supporting factual allegations and only challenges the sufficiency of Plaintiff’s complaint.

In opposition, Defendant Court asserts that: (1) its answer factually alleges that Plaintiff seeks records that are not “judicial administrative records” subject to disclosure; (2) the records are exempt from disclosure; (3) Plaintiff did not follow the required procedure; (4) Plaintiff did not contact the correct individual; (5) the records sought were not reasonably identified by Plaintiff; (6) Defendant Court took reasonable efforts to assist Plaintiff to refine her records request; and (7) Defendant Court was unable to find responsive documents due to Plaintiff’s failure to refine her search.

On reply, Plaintiff argues that, through its opposition, Defendant Court attempts to amend its answer by arguing factual allegations, legal analysis, and explanations that are not included in its answer. Plaintiff argues the opposition contains an “extensive discussion” regarding Rule 10.500 and distinctions between “judicial administrative and adjudicative records,” which are not contained in Defendant

Court's answer. However, contrary to Plaintiff's assertions, Defendant Court directly alleges Rule 10.500 in its answer (second and fourth affirmative defenses) and alleges its bases for contending that the records requested by Plaintiff are not "judicial Administrative records" subject to production (second affirmative defense). Therefore, Plaintiff's argument on this point is without merit.

Finally, Plaintiff's argument that the "affirmative defenses" are not sufficiently pleaded also appears without merit. In *State Farm Mutual Automobile Insurance Co.*, the court explained the difference between denials and affirmative defenses: "Under Code of Civil Procedure section 431.30, subdivision (b)(2), the answer to a complaint must include '[a] statement of any new matter constituting a defense.'" (*State Farm Mutual Automobile Insurance Co. v. Superior Court* (1991) 228 Cal.App.3d 721, 725.) "The phrase 'new matter' refers to something relied on by a defendant which is not put in issue by the plaintiff." (*State Farm Mutual*, *supra*, 228 Cal.App.3d at p. 725 [internal citation omitted].) "Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as 'new matter.'" (*Ibid.*) Where, however, the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not 'new matter,' but only a traverse [(denial)]." (*Ibid.*)

Here, Defendant Court's defenses allege "new matters" that are not found on the face of Plaintiff's complaint. Plaintiff's complaint alleges that Defendant Court is required to provide her with certain records. In its "affirmative defenses," Defendant Court alleges reasons why Plaintiff is not entitled to the records she seeks or why it cannot comply. Defendant Court's affirmative defenses allege the legal grounds and ultimate facts in support of its denial, which are not found on the fact of Plaintiff's complaint and constitute "new matters."

35. *Morales v. VPET USA, LLC, et al*, Case No. CIVSB2108161
Plaintiff's Motion for Preliminary Approval of Class Action Settlement
8/28/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT** as related to this settlement with Defendant Workforce Personnel.¹

Preliminary Approval of Class Action Settlements in General

Settlement of a class action requires court approval. (Cal. Rules of Court, rule 3.769.) The moving party must demonstrate that "the settlement is fair, adequate and reasonable." (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 126; *Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 337.) The court has "broad discretion in making this determination." (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors the court may consider include "the strength of the plaintiffs' case, the risk, the expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement." (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors "is not exhaustive and should be

¹ The Settlement excludes VPET USA, LLC; Andrew Hernandez, Jr.; and Andrew Hernandez, Sr. (Settlement, ¶A17.)